

25NNCV00607 25NNCV00607

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CA%2C08%2F07%2F2026

Source SHA-256: 81477e0ec5fa94da4c2a3114a5ae90474316760a9b70b33873940a82406bd436

Case Number: 25NNCV00607 Hearing Date: August 7, 2026 Dept: A

TENTATIVE ORDER

AUGUST 7, 2026

MOTIONS TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 25NNCV00607

MP: Plaintiff Manuel Ontaneda

RP: Defendant

Jesus Plascencia

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

 or by telephone at (818) 260-8412.

ALLEGATIONS:

Manuel Ontaneda ("Plaintiff") alleges that on February 12, 2023, he rode his bicycle in front of Defendant Jesus Plascencia's ("Plascencia") property when two dogs owned by Plascencia and Defendant Bryan Yepes Centeno's ("Centeno") came out towards Plaintiff. Plaintiff alleges the first dog jumped in front of the bicycle, while the second dog viciously bit Plaintiff's lower left leg.

The Complaint, filed January 29, 2025, alleges: (1) Strict Liability (C.C.P. § 3342); and (2) General Negligence/Premises Liability.

On November 10, 2025, Plaintiff dismissed without prejudice Centeno.

MOTIONS ON CALENDAR:

There are two discovery motions on calendar. On April 7, 2026, Plaintiff filed a Motion to Compel Defendant Plascencia's ("Defendant") Further Responses to Request for Production of Documents, Set One ("RPD").

On April 10, 2026, Plaintiff filed a Motion to Compel Defendant's Further Responses to Special Interrogatories, Set One ("SROG"). On July 23, 2026, Defendant filed opposition. On July 28, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A. Motion
to Compel Further Responses to Interrogatories

A motion to compel further interrogatory responses may be brought based on: (1) answers that are evasive or incomplete, (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response, or (3) unmerited or overly generalized objections.

(C.C.P. § 2030.300(a).) The motion must be accompanied by a meet and confer declaration. (C.C.P. § 2030.300(b)(1).) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2030.300(c).)

The responding party has the burden of justifying the objections thereto. (Coy v. Sup.Ct. (1962) 58 Cal.2d 210, 220-21.)

B.

Motion to Compel Further Responses to RPD

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).)

S

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand and be accompanied by a meet and confer declaration. (C.C.P. § 2031.310(b)(1).) "Good cause" is shown by "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224.) The motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. § 2031.310(c).)

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court of Los Angeles County (2002) 95 Cal. App.4th 92, 98.)

ANALYSIS:

A.

SROGs

Plaintiff seeks Defendant's further responses to SROG Nos. 8 and 36-44.

1.

Timeliness

Preliminarily, Defendant argues that the SROG motion was untimely filed because Plaintiff's deadline was April 7, 2026 and the SROG motion was served on April 7, 2026 but untimely filed on April 10, 2026.

In reply, Plaintiff argues that Defendant's verification is invalid because the SROG responses are signed by defense counsel Warren M. Ellis and dated February 12, 2026, but Defendant signed the verification on February 5, 2026, such that Defendant could not attest the truth of responses that did not yet exist. Plaintiff argues without a valid verification, the 45-day clock did not commence.

Indeed, the verification is questionable as it appears to have been executed by Defendant on February 5, 2026 before responses were finalized by defense counsel on February 12, 2026. It is unclear if verifications were prepared in advance of the finalized responses, or if there was a typographical error. As there are questions regarding the validity of the SROG responses' verification, the Court will deem the motion timely filed because the 45-day time limitation did not commence where Defendant did not provide a properly dated verification.

The Court will consider the substantive merits of the motion.

2.

Merits of Motion

SROG No. 8 asks Defendant to state the facts upon which he bases his contention that any injuries suffered were the result of Plaintiff's negligence or actions of unknown third parties. Defendant objected that discovery was ongoing, the SROG contained subparts or was compound, the SROG sought premature information, the SROG constituted a "continuing" interrogatory, the information was protected by the attorney-client privilege and attorney work product doctrine, and the SROG sought irrelevant information. Without waiving objections, Defendant responded by citing photos of Plaintiff's injuries, the canines, and the location of the incident; Azusa Police Department Incident Report No. 23-04732; Plaintiff's billing and medical records; and Plaintiff's employment records.

Defendant's objection that discovery is ongoing is not a valid objection. Defendant has an obligation to investigate and make a reasonable and good faith effort to obtain the information as requested in the inquiry. (See C.C.P. § 2030.220.)

Next, Defendant argues that he complied by referring to documents. However, C.C.P. § 2030.230 states:

If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.

(C.C.P. § 2030.230.)

Defendant has not substantiated his reliance on section 2030.230 as he has not stated that responding to SROG No. 8 would necessitate the preparation of making of a compilation, etc. and that responding to the SROG would be burdensome or expensive otherwise.

Furthermore, based on the documents described in Defendant's answer, the listed documents are not responsive to whether the injuries were suffered as a result of Plaintiff's or an unknown third party's actions.

Finally, Defendant has not substantiated his other objections or claim of privilege. (See Opp. Separate Statement at pp.3-4.) As such, the remaining objections are overruled. The motion is granted as to SROG No. 8.

SROG Nos. 36-44 are as follows:

.

SROG No. 36 asks Defendant to identify each document or record concerning any fencing/gating or planned guardrails enclosing his subject property as of the date of the incident.

.

SROG No. 37 asks whether there were any other dogs on Defendant's subject property on the date of the incident.

.

SROG No. 38 asks for the number of dogs at the subject property on the date of the incident.

.

SROG No. 39 asks Defendant to identify each document/record concerning any other dogs on his property at any time before the incident.

.

SROG No. 40 asks Defendant whether he had any knowledge of any other dogs on his property exhibiting vicious tendencies prior to the incident.

.

SROG No. 41 asks whether Defendant received complaints concerning the subject dogs exhibiting vicious tendencies towards other dogs at his property prior to the incident.

.

SROG No. 42 asks whether Defendant had knowledge of any other dog bite incidents at the subject property prior to the incident.

.

SROG No. 43 asks Defendant to identify each document/record concerning any incidents involving other dogs on his property at any time before the incident.

.

SROG No. 44 asks whether he was aware of other dogs leaving his property prior to the incident.

Defendant responded/objectioned to these SROGs in the same manner. Defendant objected that discovery was ongoing, the SROGs contained subparts or was compound, the SROGs sought premature information, the SROGs constituted a "continuing" interrogatory, the information was protected by the attorney-client privilege and attorney work product doctrine, the SROGs sought irrelevant information, and Plaintiff served more than 35 SROGs in violation of C.C.P. § 2030.030 without submitted a section 2030.050 declaration making the SROGs excessive in number.

Based on Defendant's arguments in opposition, the only objection he relies upon is that these SROGs are excessive in number. (Defendant argues that Plaintiff propounded 47 SROGS, or 12 over the statutory limit; however, the number of SROGs is actually 44, or nine over the statutory limit.)

C.C.P. § 2030.030 states that a party may propound 35 SROGs. If more than 35 are propounded, a party need only respond to the first 35 SROGs unless a declaration pursuant to section 2030.050 has been made. Section 2030.050's subpart (8) requires the following statement: "This number of questions is warranted under Section 2030.040 of the Code of Civil Procedure because _____. (Here state each factor described in Section 2030.040 that is relied on, as well as the reasons why any factor relied on is applicable to the instant lawsuit.)."

C.C.P. § 2030.040 states:

(a) Subject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

(1) The complexity or the quantity of the existing and potential issues in the particular case.

(2) The financial burden on a party entailed in conducting the discovery by oral deposition.

(3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

(b) If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.

(C.C.P. § 2030.040; see Weil & Brown, The Rutter Guide, Cal. Prac. Guide Civ. Pro. Before Trial (June 2026 Update) Ch. 8F-3, § 8:956 [stating, “The statute authorizes more than 35 interrogatories when accompanied by a ‘declaration of necessity,’ ‘[s]ubject to the right of the responding party to seek a protective order.’ [CCP § 2030.040(a) (emphasis added)] [¶] The clear implication is that the responding party cannot simply object to more than 35 interrogatories. Rather, the responding party must seek a protective order (within the time and in the manner required by CCP § 2030.090(a); [citation].).”].)

C.C.P. § 2030.090 states in relevant part:

(a) When interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: ...

(2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.

(C.C.P. § 2030.090(a), (b)(2).)

A review of Plaintiff's SROG requests confirms it included a Declaration for Additional Discovery. (See SROG Mot. at Ex. A.) In the declaration, counsel Harout

Messrelian stated that the number of SROGs was warranted because “the quantity of existing and potential factual and legal issues in this particular case. The number of special interrogatories is also necessary to ensure that each request is not compound, conjunctive or disjunctive.”

Defendant disagrees with this rationale, arguing that counsel's declaration fails to adequately provide a reason for the additional SROGs. The Court disagrees and concludes that Mr. Messrelian's declaration sufficiently explains the need for an additional nine SROGs.

Furthermore, as stated in C.C.P. § 2030.040(a), a party attaching a supporting section 2030.050 declaration may propound a greater number of SROGs, subject to the right of the responding party to seek a protective order pursuant to section 2030.090. Here, Defendant chose simply not to respond rather than seeking a protective order. Defendant simply objected to the excessive number of SROGs which is not the proper means to address excessive SROGs. The Court overrules this objection and will allow the additional nine SROGs to proceed.

The motion is granted as to SROG Nos. 36-44.

B.
RPDs

Plaintiff seeks Defendant's further responses to RPD Nos. 9-12.

RPD Nos. 9-11 seek all documents identified or to be identified by Defendant in response to SROG Nos. 36, 39, and 43 served on him concurrently by Plaintiff, or responsive thereto. Defendant objected to the RPDs on the grounds that they were vague, oppressive, overly broad as to time and scope, unduly burdensome and expensive, harassing, and irrelevant; sought impermissible character evidence; and violated privacy rights. Without waiving objections, Defendant stated that he conducted a diligent search and reasonable inquiry, but is unable to comply with the RPDs as no such documents were in his possession, custody, or control.

Plaintiff argues that further responses are necessary because Defendant claimed in response to the SROGs that they were excessive in number and thereby, did not provide a response.

Plaintiff points out that there is no limitation on the number of RPDs such that Defendant must still respond to these RPDs. In opposition, Defendant argues that because he is not required to respond to SROG Nos. 35, 39, and 43, he is not required to respond to RPD Nos. 9-11.

However, as the Court grants the motion to compel Defendant's further responses to SROG Nos. 35, 39, and 43, the Court too orders Defendant to provide further responses to RPD Nos. 9-11. The motion is granted as to RPD Nos. 9-11.

RPD No. 12 seeks all documents relating to any applicable insurance coverage which may cover the incident. Defendant objected and responded on the same grounds as above. He also argues that there is no good cause for producing this document as he already responded in the negative to FROG No. 40.1 (re whether Defendant had insurance to cover the claims arising out of the incident).

Plaintiff argues a further response is necessary because Defendant cannot rely on an "excessive discovery" objection to withhold documents. However, Defendant did not object to this RPD on the basis of excessive SROGs, and SROG Nos. 36-44 do not discuss insurance documents. Next, while the Court understands Plaintiff's arguments that insurance documents are discoverable, Defendant has affirmed that no insurance coverage for this claim exists in response to the FROGs and, thus, he has no documents responsive to this RPD. As such, his RPD response that no such documents exists, in conjunction with his FROG response, is sufficient. The motion is denied as to RPD No. 12.

C.

Sanctions

Plaintiff seeks \$3,060 in sanctions against Defendant and his counsel of record for each motion ([1 hour to meet and confer + 3 hours on the motion + 2 anticipated hours on the reply/attending the hearing, at \$500/hour] + \$60 filing fee). (Hazarian Decl., ¶8.)

Plaintiff's requests for sanctions are granted in the total amount of \$1,500 and \$120 in

filing fees, or \$1,620 total. The Court finds this amount reasonable as the motion papers show that the exhibits were substantially the same and that the meet and confer letter included both the SROG and RPD responses, such that the Court declines to award duplicative time spent on the motions.

In opposition, Defendant seeks \$2,025 in sanctions against Plaintiff for opposing the SROG motion and \$1,800 for opposing the RPD motion. Defendant's request for sanctions is denied.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Manuel Ontaneda's Motions to Compel Further came on regularly for hearing on August 7, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE Motion to Compel DEFENDANT JESUS PLASCENCIA'S FURTHER RESPONSES IS GRANTED AS TO SPECIAL INTERROGATORIES NOS. 8 AND 36-44.

THE Motion to Compel DEFENDANT JESUS PLASCENCIA'S FURTHER RESPONSES IS GRANTED AS TO REQUESTS FOR PRODUCTION OF DOCUMENTS NOS. 9-11 AND DENIED AS TO NO. 12.

responses are to be made within 30 days of this order.

DEFENDANT AND HIS COUNSEL OF RECORD, JOINTLY AND SEVERALLY, ARE ORDERED TO PAY MONETARY SANCTIONS IN THE AMOUNT OF \$1,620 TO PLAINTIFF, BY AND THROUGH COUNSEL, WITHIN 30 DAYS OF THIS ORDER.

PLAINTIFF TO
PROVIDE NOTICE.

IT IS SO ORDERED.